Calendar Line # 6
Case Name Prasun Maharatna vs Flexton Inc. et al
Case No. 26CV483967

Motion to Compel

I. BACKGROUND

This case stems from a wrongful termination claim, on August 8, 2026, Plaintiff Prasun Maharatna ("Maharatna") filed a Complaint alleging thirteen causes of actions against his former employer, Defendant Flexton Inc. and Rajdeep Jaiswal (collectively "Defendants"), including: (1) violation Government Code section 12900 et seq., disability discrimination; (2) failure to prevent, investigate, and remedy discrimination under Government Code section 12900; (3) retaliation in violation of Government Code section 12900; (4) retaliation in violation of Labor Code section 1102.5; (5) constructive wrongful termination in violation of public policy (count I); (6) constructive wrongful termination in violation of public policy (count II); (7) failure to timely pay earned wages under Labor Code sections 204 and 210; (8) waiting time penalties in violation of Labor Code sections 201 and 203; (9) failure to reimburse business expenses in violation of Labor Code section 2802; (10) breach of contract; (11) breach if implied covenant of good faith and fair dealing; (12) intentional infliction of emotional distress; and (13) negligence. Defendants filed an Answer on February 27, 2026.

Before the Court is Plaintiff's motion to compel responses to request for production of documents, set one, and sanctions. The motion was accompanied by a proof of service indicating electronic mail service to Defendants' counsel on that same day.

The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: notice of motion and memorandum of points and authorities ("MPA") in support of the motion to compel (totaling 9 pages); Declaration of Alex Purcell in support of the motion and attached Exhibits A-C (totaling 41 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

Purusant to Code of Civil Procedure section 2031.260, a party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a)). If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling response to the demand. (*Id.,* § 2031.300, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (*See Id*., § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a)).

"In addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.050, subd. (a)).

III. ANALYSIS

Plaintiff served initial discovery, including request for production of documents ("RFPD"), set one on Defendants on March 11, 2026. (Declaration of Purcell ⁋ 2; Exhibit A-B). On April 3, 2026, Plaintiff agreed to Defendants request for an extension to respond to RFPD by May 14, 2026. (*Id.,* ⁋ 3). However, no response to RFPD was provided by the May 14 deadline. (*Id.,* ⁋ 6). On May 19, 2026, Plaintiff sent a correspondence to defense notifying them of the late responses, waiver of objections to the RFPD, and requested responses by May 29, 2026. (*Id.,* ⁋ 5; Exhibit C). At the time of filing the present motion, the Plaintiff has not received any response from Defendants. (*Id.,* ⁋ 6).

Over four months have lapsed since responses to RFPD, set one was served and no verified responses were produced. Plaintiff has demonstrated that RFPD were served and no responses were provided.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court GRANTS the motion to compel verifications to the RFPD, set one.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, "the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)).

Plaintiff's counsel seeks a total of $3,305 in sanctions for pursuing this motion. Plaintiff's counsel seeks three hours of work expended on researching and preparing this motion; three hours of anticipated time for reviewing any opposition and drafting a reply brief; and one hour of anticipated time to appear for the hearing at the hourly rate of $425.00. Plaintiff's counsel seeks $60.00 in costs for filing this motion.

The Court notes that no opposition papers were filed, thus no time is required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court also notes that this is a straightforward motion. The Court GRANTS two hours of time expended on the motion at the requested hourly rate of $475.00 as well as the $60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of $910.00.

V. CONCLUSION

Based on the foregoing, the motion being unopposed, the Court GRANTS the motion to compel verified responses to RFPD, set one. The Defendant is to provided verifications to the response to RFPD, set one within twenty (20) days from this hearing. The Court GRANTS sanctions against Defendants in the amount of $910.00. Defendants are to pay the sanctions amount within twenty (20) days from this hearing.

The Court will prepare the formal Order.

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Calendar Line # 7
Case Name Pavel Rodl vs Sanas.AI
Case No. 26CV493338

Petition to Compel Arbitration

I. <u>BACKGROUND</u>

Plaintiff Pavel Rodl ("Plaintiff") was an employee of Defendant Sanas. AI ("Defendant") from January 6, 2025 until his alleged wrongful termination on December 17, 2025. (Complaint at ¶¶ 9, 26). In January 2025, Plaintiff worked on what became "the Verizon opportunity" valued at over $4 million. (*Id.* at ¶ 11). Plaintiff led more than 40 customer meetings and coordinated the account in connection with the Verizon opportunity. (*Ibid.*).

Plaintiff alleges that in August 2025, Defendant's Chief Sales Officer Anant Singh ("Singh") "unilaterally inserted himself into pricing negotiations." (Complaint at ¶ 12). At a November 15, 2025 meeting, Singh told Plaintiff that he would not be receiving any commissions on the Verizon opportunity because Plaintiff had lost the deal and the per-license price was too low. (*Id.* at ¶ 14). Singh further allegedly stated Plaintiff "did not 'deserve' any commissions because he was 'white', 'handsome', 'well dressed', and 'in good shape.'" (*Id.* at ¶ 18).

Plaintiff complained to Human Resources on December 15, 2025. (Complaint at ¶ 22). Plaintiff alleges that the Vice President of People Saralynn Pizano (Pizano) acknowledged Singh's behavior as harassment. (*Id.* at ¶ 24). However, Pizano never conducted any investigation into Plaintiff's complaints. (*Id.* at ¶ 25). Two days later, on December 17, 2025, Pizano notified Plaintiff that he was being terminated for "performance reasons." (*Id.* at ¶ 26). The Verizon opportunity was reassigned to Singh and closed while Plaintiff was still employed. (*Id.* at ¶ 27).

Plaintiff filed suit on May 6, 2026. Plaintiff alleges twelve causes of action for: (1) failure to pay wages due under Labor Code section 200 et seq; (2) wage complaint retaliation under Labor Code section 98.6; (3) whistleblower retaliation under Labor Code section 1102.5; (4) racial discrimination under the Fair Employment and Housing Act ("FEHA"); (5) unlawful retaliation under FEHA; (6) failure to investigate discrimination under FEHA; (7) wrongful termination; (8) failure to pay wages at term under Labor Code section 203; (9) failure to produce pay records under Labor Code section 226; (10) failure to produce personnel file under Labor Code section 1198.5; (11) failure to reimburse business expenses under Labor Code section 2802; and (12) unfair competition under Business & Professions Code section 17200.

Defendant now moves to compel arbitration pursuant to the arbitration provision contained in Plaintiff's offer letter ("the Agreement"). Having considered the Agreement and the circumstances of its execution, the Court will grant the motion and stay this action.

II. <u>LEGAL STANDARD</u>

The Federal Arbitration Act ("FAA") governs the Agreement. The Agreement states, "[t]o the fullest extent permitted by law, you and the Company agree to submit to mandatory binding arbitration, governed by the Federal Arbitration Act (the ***'FAA'***)". (Declaration of Saralynn Pizano, Ex. B at SANAS 000002, emphasis in original). In any event, "[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA." (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289).

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).